

**BOARD RESOLUTION AUTHORIZING SETTLEMENT AGREEMENT**

WHEREAS, the Board of Education recognizes that it is in the best interest of the District to enter into a settlement agreement regarding a pending Due Process complaint filed by District Parents on behalf of their child; and

WHEREAS, the Parents have agreed to dismiss with prejudice the Due Process complaint, Case No. SE 3670-2018, which is pending with the Ohio Department of Education Office of Exceptional Children; and

WHEREAS, the Board of Education has reviewed the proposed settlement agreement, which is attached hereto as Exhibit "A" (sealed), and approves of the terms of the agreement; and

WHEREAS, the settlement agreement involves a student in the District and must be maintained as confidential under both state and federal law;

NOW, THEREFORE, BE IT RESOLVED, that the Board of Education authorizes the Superintendent and Director of Pupil Services to execute the settlement agreement and take, along with the Treasurer, any and all action necessary to implement the terms of the agreement.

UPON ROLL CALL, on passage of the foregoing resolution, the vote was as follows:

|       | Yes   | No    |
|-------|-------|-------|
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The foregoing is a true and correct excerpt from the minutes of a meeting of the Board of Education of the Brecksville-Broadview Heights City School District conducted on October 22, 2018.

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Jeff M. Hall, Treasurer